



Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Instrument 2018

made under subregulation 2.72(17) and paragraphs 2.72(15)(b), 2.72C(15)(b),
2.72C(15)(d) and 2.79(1A)(b) of the

Migration Regulations 1994

Compilation No. 6

Compilation date: 25 March 2026

Includes amendments: *Migration Legislation Amendment (Annual Market Salary
Rate) Instrument 2026 (F2026L00329)*

Prepared by the Department of Home Affairs

About this compilation

This compilation

This is a compilation of the *Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Instrument 2018* that shows the text of the law as amended and in force on 25 March 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Part 1—Preliminary

1 Name

- (1) This instrument is the *Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Instrument 2018*.
- (2) This instrument may also be cited as IMMI 18/033.

3 Authority

This instrument is made under the following provisions of the *Migration Regulations 1994*:

- (a) paragraph 2.72(15)(b);
- (b) subregulation 2.72(17);
- (c) paragraph 2.72C(15)(b);
- (d) paragraph 2.72C(15)(d);
- (e) paragraph 2.79(1A)(b).

4 Definitions

In this instrument:

Australian Worker means an employee that is either an Australian citizen or an Australian permanent resident.

fair work instrument has the meaning given by section 12 of the *Fair Work Act 2009*.

Regulations means the *Migration Regulations 1994*.

Relevant employment documents may include, but is not limited to:

- (a) pay slips;
- (b) contract of employment.

Relevant information may include, but is not limited to:

- (a) information published on the Australian Government's Jobs and Skills Australia, Occupation and Industry Profiles webpage;
- (b) job advertisements from a national recruitment website or national print media that are in English and specify the salary arrangements for the advertised position;
- (c) written advice from registered employer associations and/or unions;
- (d) remuneration surveys generated across the relevant industry by a reputable organisation or body.

state industrial instrument has the meaning given by section 12 of the *Fair Work Act 2009*.

transitional instrument has the meaning given by Item 2 of Schedule 2 to the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009*.

Part 2—Income Threshold and Annual Earnings

5 Annual Earnings

For the purposes of paragraphs 2.72(15)(b), 2.72C(15)(b) and 2.79(1A)(b) of the Regulations, the specified amount of annual earnings is AUD 250,000.

6 Income Threshold

For the purposes of paragraph 2.72C(15)(d) of the Regulations, the temporary skilled migration income threshold is AUD 76,515.

Part 3—Method of determination of Annual Market Salary Rate

7 Method for determining the annual market salary rate where an Australian worker is performing equivalent work

- (1) For the purposes of subregulation 2.72(17) of the Regulations, where there is an Australian worker who is:
 - (a) employed in the same workplace as the nominee; and
 - (b) at the same location as the nominee; and
 - (c) performing equivalent work to the nominee;the method for determining the annual market salary rate must be in accordance with subsection (2) or (3).
- (2) Where there is a fair work instrument, state industrial instrument or transitional instrument applicable to an Australian worker mentioned in subsection (1), the annual market salary rate must be determined:
 - (a) to be the annual earnings specified in that instrument; or
 - (b) by reference to relevant employment documents, provided that the annual earnings are not less than the annual earnings determined under paragraph (2)(a).
- (3) Where there is no fair work instrument, state industrial instrument or transitional instrument that is applicable to an Australian worker mentioned in subsection (1), the annual market salary rate is the annual earnings that apply in relation to an equivalent Australian worker, determined by reference to relevant employment documents.

8 Method of determining the annual market salary rate where there is not an Australian worker performing equivalent work

- (1) For the purposes of subregulation 2.72(17) of the Regulations, where there is no Australian worker who is:
 - (a) employed in the same workplace as the nominee; and
 - (b) at the same location as the nominee; and
 - (c) performing equivalent work to the nominee;the method for determining the annual market salary rate must be determined in accordance with subsection (2) or (3).
- (2) Where there is a fair work instrument, state industrial instrument or transitional instrument applicable to a nominated occupation, the annual market salary rate must be determined:
 - (a) to be the annual earnings that would apply to an equivalent Australian worker as specified in that instrument; or
 - (b) by reference to relevant information, provided that the annual earnings are not less than the annual earnings determined under paragraph (2)(a).
- (3) Where there is no fair work instrument, state industrial instrument or transitional instrument applicable to a nominated occupation, the annual market salary rate is the annual earnings that would apply in relation to an equivalent Australian worker, determined by reference to relevant information.

Part 4—Application

9 Application

This instrument applies to nominations for a proposed occupation by a standard business sponsor, a person who has applied to be a standard business sponsor, a party to a work agreement (other than the Minister) or a party to negotiations for a work agreement (other than a Minister), made on or after 18 March 2018 in relation to a:

- (a) a holder of a Subclass 457 (Temporary Work (Skilled) visa;
- (b) a holder of a Subclass 482 (Temporary Skill Shortage) visa holder; or
- (c) an applicant or proposed applicant for a Subclass 482 (Temporary Skill Shortage) visa.

Note: This instrument applies to additional visas through operation of the Regulations: see subregulations 2.72C(15) and (16), 2.79A(2) and paragraphs 5.19(5)(o) and 5.19(9)(h) of the *Migration Regulations 1994*.

10 Application of the Migration (Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment Instrument (LIN 23/045) 2023.

The amendments made by Schedule 1 to the *Migration (Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary*

Rate) Amendment Instrument (LIN 23/045) 2023 apply to an application for approval of a nomination made after 30 June 2023.

11 Application of LIN 24/052

The amendments made by Schedule 1 to the *Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment (LIN 24/052) Instrument 2024* apply in relation to an application for approval of a nomination made on or after 1 July 2024.

12 Application of amendments made by LIN 24/094

The amendments of this instrument made by Schedule 3 to the *Migration Amendment (Skills in Demand Visa and Related Matters) Instrument 2024* (the **amending instrument**) apply to nomination of a proposed occupation in relation to:

- (a) the holder of subclass 457 (Temporary Work (Skilled)) visa; or
- (b) the holder of subclass 482 (Temporary Skill Shortage) visa; or
- (c) the holder of a subclass 482 (Skills in Demand) visa; or
- (d) an applicant or a proposed applicant (a **nominated person**) for a subclass 482 (Skills in Demand) visa;

made on or after the commencement of the amending instrument.

13 Application of amendments made by LIN 25/038

The amendments made by Schedule 1 to the *Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment (Annual TSMIT Increase) Instrument 2025* apply in relation to an application for the approval of a nomination made on or after 1 July 2025.

14 Application of amendments made by LIN 26/038

The amendments of this instrument made by items 1 and 2 of Schedule 1 to the *Migration Legislation Amendment (Annual Market Salary Rate) Instrument 2026 (LIN 26/038)* apply in relation to:

- (a) an application for the approval of a nomination made but not decided before the commencement of LIN 26/038; and
- (b) an application for the approval of a nomination made on or after the commencement of LIN 26/038.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	p = page(s)
amdt = amendment	para = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
ch = Chapter(s)	prev = previous
cl = clause(s)	(prev...) = previously
cont. = continued	pt = Part(s)
def = definition(s)	r = regulation(s)/Court rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
div = Division(s)	rep = repealed
exp = expires/expired or ceases/ceased to have effect	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s) /rule(s)/subrule(s)/order(s)/suborder(s)
LA = <i>Legislation Act 2003</i>	sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	sub ch = Sub-Chapter(s)
No. = Number(s)	sub div = Subdivision(s)
Ord = Ordinance	sub pt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Instrument 2018	16 Mar 2018 (F2018L00284)	18 Mar 2018 (s 2)	
Migration (LIN 19/213: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment Instrument 2019	13 Nov 2019 (F2019L01448)	16 Nov 2019 (s 2)	—
Migration (Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment Instrument (LIN 23/045) 2023	30 Jun 2023 (F2023L00921)	1 Jul 2023 (s 2)	—
Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment (LIN 24/052) Instrument 2024	29 Jun 2024 (F2024L00833)	1 Jul 2024 (s 2)	—
Migration Amendment (Skills in Demand Visa and Related Matters) Instrument 2024	6 Dec 2024 (F2024L01621)	Sch 3: 7 Dec 2024 (s 2)	—
Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Amendment (Annual TSMIT Increase) Instrument 2025	23 Jun 2025 (F2025L00731)	1 July 2025 (s 2)	—
Migration Legislation Amendment (Annual Market Salary Rate) Instrument 2026	24 Mar 2026 (F2026L00329)	25 Mar 2026 (s 2)	—

Endnote 4—Amendment history

Provision affected	How affected
s 2.....	rep LA 48D
s 3.....	rs F2024L01621
s 4.....	am F2024L01621
	am F2026L00329
s 5.....	am F2024L01621
s 6.....	am F2023L00921
	am F2024L00833
	am F2024L01621
	am F2025L00731
s 7	rs F2026L00329
s 8	rs F2026L00329
s 9.....	rs F2019L01448
s 10.....	ad F2023L00921
s 11	ad F2024L00833
s 12.....	ad F2024L01621
s 13.....	ad F2025L00731
s 14.....	ad F2026L00329